

VILLAGE OF TUXEDO PARK — BOARD OF TRUSTEES
THE AFFECTED BOATHOUSES
Separate Tax Lots, Shared Consequences

Memorandum submitted by David McFadden and Robin McFadden
28 Pepperidge Road • Owners of the separately assessed boathouse at 61 Turtle Point Road
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The Affected Boathouses

The proposed local law should not be evaluated as though it concerns only the McFadden boathouse. As we understand the Village tax map, eight boathouse properties are situated on separate tax lots and therefore do not fit neatly within the ordinary concept of an accessory building located on the same lot as a principal residence or other principal building.

At the August 20, 2026 public hearing, Mayor Citrin stated that the proposal was directed at the McFadden boathouse after a neighbor noticed that the property was ‘listed for photoshoot’ [by appointment only]. That statement identifies the immediate trigger for the proposal. It does not limit the proposal’s effect. A law prompted by one listing would apply to and restrict every similarly situated, separately assessed boathouse, including all eight Affected Boathouses identified below.

For purposes of this memorandum, those properties are referred to collectively as the “Affected Boathouses”:

- The McFadden boathouse on Tuxedo Lake;
- The Sonne boathouse on Tuxedo Lake;
- The Bruno boathouse property on Tuxedo Lake;
- The Shore boathouse on Tuxedo Lake;
- The Madden boathouse on Tuxedo Lake;
- The Dow boathouse on Tuxedo Lake;
- The Tuxedo Club boathouse on Tuxedo Lake; and
- The Shore boathouse on Wee Wah Lake.

One Classification Problem, Eight Affected Properties

Although the eight parcels may differ in ownership, deed history, physical condition, past use, and relationship to another property, they share the classification problem created by the proposal: each boathouse occupies its own tax lot. If the law treats every use of a building on a separate lot as nonaccessory—or prohibits broad categories of activity merely because the structure is not on the same lot as a residence—the resulting burden does not fall on one owner. It falls on the entire class of separately assessed boathouses.

The Village should verify the parcel history and zoning status of each property before legislating. A tax-lot boundary is an administrative fact; it does not, by itself, identify a public nuisance or measure noise, traffic, parking, safety, intensity, or neighborhood impact. A quiet activity does not become disruptive merely because a tax line separates a boathouse from the residence or institution with which it has historically been associated.

Because boathouses have docks, the Board should clarify whether the proposed law also affects every waterfront property owner with a dock, including the Village Boat Club. If so, its reach extends far beyond the eight Affected Boathouses.

This Is Not a Request for a Personal Exemption

David and Robin McFadden are not asking the Village to write a special exception for their boathouse. The opposite is true. Any protection should apply objectively and uniformly to all Affected Boathouses and to similarly situated properties.

If the McFadden boathouse cannot host a small, owner-supervised photographer creating images for a clothing brochure, the same interpretation could prevent another boathouse owner from allowing photographs for an architectural brochure, preservation publication, design magazine, real-estate listing, insurance record, charitable appeal, club publication, or historical presentation whenever someone involved receives compensation or the images serve a commercial purpose.

That consequence should not depend on who owns the boathouse, who is being photographed, which publication will use the image, or whether the Village approves of the message. The rule must be clear enough that every owner, the Tuxedo Club, Village staff, and future purchasers can determine in advance what is allowed.

How the Proposal Prejudices Every Affected Boathouse

A broad rule directed at separate-lot boathouses could diminish the lawful usefulness of every Affected Boathouse in several related ways.

- It may treat historically associated boathouses less favorably than comparable structures located on the same tax lot as a residence.
- It may convert harmless customary activity into a prohibited use without requiring proof of noise, congestion, parking, safety, or other external harm.
- It may restrict photography, filming, publication, real-estate marketing, preservation documentation, professional work, charitable activity, and club communications merely because money or another benefit changes hands somewhere in the arrangement.
- It may discourage owners from investing in restoration and maintenance by reducing the practical usefulness and marketability of costly historic structures.
- It may create uncertainty for buyers, lenders, insurers, architects, contractors, photographers, and other professionals who cannot tell whether ordinary work at a boathouse is lawful.
- It may invite inconsistent enforcement at the front gate or a private event because officials would have to decide which guests are truly friends, which payments are incidental, which images are commercial, and which activities are sufficiently connected to another property.
- It may burden separately assessed properties that already generate tax revenue while depriving their owners of peaceful uses that would ordinarily occur without regulation on an integrated residential lot.

Comparable Activities Should Be Judged by Their Actual Impacts

A large Tuxedo Club event may create greater impacts than a light-footprint photoshoot: more guests, vehicles, parking, noise, municipal attention, and potential demands on limited police resources when alcohol is served. Club events need not be prohibited; the comparison shows why the Village should regulate actual impacts consistently, regardless of ownership or compensation.

The Brochure Example Exposes the Overbreadth

Consider the simplest example. An owner allows a photographer and a small crew to take still photographs inside a boathouse for a brochure. The owner remains present. No one stays overnight. Possession is not surrendered. All vehicles are accommodated. There is no amplified sound, generator, road closure, municipal service, public admission, or disturbance to a neighbor.

If that activity is prohibited solely because the boathouse stands on a separate tax lot or because the owner, photographer, model, publication, or client receives compensation, then the law is not regulating an identified land-use impact. It is regulating the economic purpose of otherwise quiet conduct. The same reasoning would reach every Affected Boathouse—not only the McFadden property.

Separate Assessment, Property Rights, and Market Value

Separate assessment allows the Village and other taxing authorities to impose and collect taxes on each parcel. It should not automatically become a basis for denying reasonable, low-impact use of the taxed property. Nor should owners be placed in a worse position merely because historic parcel lines separated a boathouse from the property it served.

No owner is asking the Village to authorize lodging. The Affected Boathouses do not have certificates of occupancy authorizing habitation and therefore cannot lawfully be used as dwellings or overnight accommodations. Existing certificate-of-occupancy and building-code requirements already address that issue. A concern about unlawful lodging does not justify restricting unrelated daytime activity such as owner-supervised photography, preservation work, professional services, or social use.

A use restriction does not automatically entitle an owner to a tax reduction. It may, however, become relevant to a property-assessment grievance if competent evidence shows that the restriction has reduced the parcel's full market value. New York describes an excessive assessment as an assessment exceeding full market value, and the property owner bears the burden of presenting evidence of the property's actual market value.

The Board should therefore not assume that restricting use has no fiscal consequence. If the Village reduces the market value of this distinct class of taxable property, it may invite coordinated assessment grievances from the affected owners and place the Village in the position of defending assessments that no longer reflect the properties' restricted marketability.

Effects on Future Sales and Contract Terms

The proposal may also affect owners of residences historically associated with the Affected Boathouses and future buyers considering the purchase of either or both parcels. A buyer does not value a boathouse solely by its square footage. The buyer considers what lawful uses remain, whether the parcel can be marketed with the residence, whether professional photography and preservation work are permitted, and whether ordinary owner-supervised activity could trigger enforcement.

If the law remains broad or uncertain, purchasers and their attorneys may respond by demanding a lower price or additional contract protections. Those terms could include longer zoning and land-use due-diligence periods; appraisal and financing contingencies; representations concerning notices, complaints, enforcement, and prior uses; a right to terminate if the intended use is not confirmed; separate allocation of the purchase price between the residence and boathouse parcels; and an acknowledgment that Village restrictions may limit photography, events, professional activity, or other intended uses.

The need for such conditions is itself a marketability concern. It can narrow the buyer pool, delay transactions, complicate financing and appraisal, and reduce the amount a prudent buyer will pay. These effects would not be confined to a future sale of the McFadden property. They could affect every residence and institution associated with an Affected Boathouse and any purchaser considering one of these unusual historic parcels.

A Uniform Solution for All Affected Boathouses

The Board can address legitimate concerns without singling out these properties or creating a McFadden-specific exception. A narrower law should:

- Identify the Affected Boathouses and determine the actual parcel, ownership, zoning, and use history of each before enactment;
- Recognize a category for a boathouse on a separate tax lot that is historically or functionally associated with another property, while confirming that no safe harbor authorizes habitation or any use inconsistent with the applicable certificate of occupancy;
- Rely on and enforce existing certificate-of-occupancy and building-code requirements to prevent unlawful lodging instead of using that concern to prohibit unrelated low-impact activity;
- Create a safe harbor for low-impact, owner-supervised photography, filming, social, political, charitable, educational, professional, maintenance, real-estate, preservation, and creative activity;
- Exclude ordinary gifts, shared expenses, household help, caregivers, contractors, and payments to third-party service providers from any definition of prohibited consideration;
- Use objective thresholds for people, vehicles, parking, hours, frequency, noise, lighting, generators, road use, insurance, and extraordinary municipal services; and
- Provide a timely, objective permit process for activity exceeding the safe-harbor thresholds.

Requested Board Action

Before acting on the proposed law, the Board should examine its effect on all eight Affected Boathouses as a class. It should explain why separate tax-lot status justifies different treatment, identify the documented public harm associated with each category of prohibited conduct, and determine whether existing laws or a narrow impact-based permit would address that harm.

The Board should not solve a perceived issue involving one \$200 photoshoot by reducing the rights, usefulness, and marketability of every separately assessed boathouse. Any law should protect all similarly situated owners equally, regulate actual impacts, and preserve peaceful uses that cause no public harm.

Private-Property Rights and Proportionate Regulation

Property rights and property values are not a zero-sum proposition. Allowing a small, owner-supervised photoshoot does not reduce a neighbor's property rights or property value when the activity produces no material noise, traffic, parking, safety, lighting, or other external impact. Prohibiting that activity can nevertheless reduce the usefulness and marketability of the boathouse where it occurs.

The Board should not diminish the rights and potential value of the Affected Boathouses when doing so provides no corresponding protection to neighboring property. A narrow safe harbor for quiet, owner-supervised activity would preserve private-property rights without sacrificing residential character, public safety, or anyone else's property value.

Restrictions on private property are not neutral. Each additional restriction can reduce an owner's rights, lawful options, usefulness, and property value, even when the regulated activity causes no material harm to anyone else. The Board of Trustees is an elected municipal legislative body, not a homeowners association. Its responsibility is to protect the public welfare through clear, objective, and proportionate laws—not to impose subjective preferences about peaceful conduct on private property. Before restricting the Affected Boathouses, the Board should require a documented public need and choose the least burdensome effective means of addressing it.